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CASE #	CASE NAME	HEARING NAME
CVPS2402536	FALCON VS CNRC, LLC	MOTION TO CONTINUE HEARING

Tentative Ruling: No tentative ruling. Hearing will be conducted on Tuesday, July 14, 2026 at 8:30 a.m., Department PS2.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2406360	MONDRAGON VS COUNTY OF RIVERSIDE	DEMURRER ON 2ND AMENDED COMPLAINT OF IRMA MONDRAGON BY BRANDON BECENTI, HOLIDAY INN EXPRESS & SUITES

Tentative Ruling: Sustained and overruled in part.

Sustained with leave for one additional opportunity to amend as to 1st and 2nd causes of action within 10 days of this order becoming final. Overruled as to 3rd cause of action.

Moving party to provide notice pursuant to CCP 1019.5.

Plaintiff Irma Mondragon ("Plaintiff") worked for defendant County of Riverside as a Social Services Assistant for about 9 years. Plaintiff alleges that on 4/25/23, the County assigned her to supervise a minor alone at a hotel operated by Defendant Holiday Inn Express & Suites ("Defendant") in Corona. The minor, allegedly known to have a history of violence, physically attacked Plaintiff in the hotel gymnasium for about 40 minutes. Plaintiff alleges that this caused significant physical and psychological injury, and she was diagnosed with Post-Traumatic Stress Disorder (PTSD).

The operative Second Amended Complaint ("SAC"), filed 9/17/25, names Defendant and its General Manager, Branden Becenti ("Becenti"), the County, and the supervising county employees, in the following causes of action: (1) intentional misconduct and vicarious liability, (2) negligent hiring, training, and supervision, (3) premise liability, (4) FEHA discrimination, (5) failure to engage in the interactive process, (6) failure to accommodate, (7) retaliation for request for reasonable accommodation, (8) FEHA retaliation, (9) failure to prevent discrimination and retaliation, (10) CFRA retaliation, (11) Labor Code § 1102.5 retaliation (whistleblower retaliation), (12) violation of right to privacy.

Defendants Holiday Inn and Becenti (collectively, "Defendants") demur to the 1st, 2nd, and 3rd causes of action in the SAC for failure to state facts sufficient. Defendants argue that the 1st cause of action for "intentional misconduct" is not a cognizable tort. Even if construed as intentional infliction of emotional distress ("IIED"), passive observation of the attack is not extreme and outrageous conduct. The SAC does not plead intent to cause distress. For the 2nd cause of action (negligent training), Defendants argue that the SAC does not name a single hotel employee who caused injuries. For the 3rd cause of action (premises liability), Defendants assert that landowners owe no duty to prevent third-party criminal conduct. They argue that there were no prior similar incidents to show a reasonably foreseeable risk.

In opposition, Plaintiff argues that for the 1st cause of action for IIED, Defendants had real-time knowledge of the attack, knew of the minor's violent history, and chose not to intervene or assist. For the 2nd cause of action for negligent hiring, Plaintiff argues that Defendant fails to train employees, supervise or adopt protocols, and that Becenti is personally liable as the general manager who directed operations. For the 3rd cause of action, Plaintiff argues that the hotel had